

26VECV00508 26VECV00508

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-14

Motion: DEFENDANTS' DEMURRER TO PLAINTIFFS' COMPLAINT

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Case Number: 26VECV00508 Hearing Date: July 14, 2026 Dept: U

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MAXINE GOLDRING;

and LIAM LEVY, by and through his guardian ad litem MAXINE GOLDRING,

Plaintiff,

vs.

INVESTWEST, LLC.; TRACY HRACH; CD

APARTMENTS, LLC.; and DOES 1-50, inclusive,

Defendants.

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CASE NO: 26VECV00508

[TENTATIVE] ORDER RE: DEFENDANTS'
DEMURRER TO PLAINTIFFS' COMPLAINT

Dept. U

8:30 a.m.

July 14, 2026

I.

BACKGROUND

This
case is a habitability action.

On

January 27, 2026, Plaintiffs Maxine Goldring and Liam Levy, by and through his guardian ad litem Maxine Goldring, filed their complaint against Defendants InvestWest, LLC.; Tracy Hrach ("Hrach"); and CD Apartments, LLC. ("CDA"), alleging: (1) breach of the warranty of habitability in violation of Civil Code section 1941.1; (2) breach of the warranty of habitability in violation of Health & Safety Code section 17920.3; (3) breach of the warranty of habitability in violation of Civil Code section 1942.4; (4)

negligence - premises liability; (5) nuisance; (6) intentional infliction of emotional distress ("IIED"); (7) breach of contract; (8) breach of the covenant of quiet enjoyment; and (9) fraud/deceit/intentional misrepresentations of fact.

On April 21, 2026, CDA filed its demurrer to each cause of action in the complaint and motion to strike portions of the complaint.

On June 30, 2026, Plaintiffs filed their opposition briefs.

On July 7, 2026, CDA filed its reply briefs.

II.

LEGAL STANDARD

a. Demurrer

A demurrer is a procedure to object to a pleading set forth under Code of Civil Procedure section 430.10, et seq. Because a demurrer tests the pleadings alone and not the evidence or other extrinsic matters, a demurrer analysis considers only those defects which appear on the face of the pleading or are judicially noticed. *SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905. When considering demurrers, courts assume the truth of the facts alleged in the pleading and read the allegations liberally and in context. *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081.

A demurrer for sufficiency attacks a pleading on the ground that it does not contain facts sufficient to state a cause of action. Code Civ. Proc., § 430.10 (e); *Hahn v. Mirza* (2007) 147 Cal.App.4th 740, 747. Parties may also demur to causes of action individually. In either case, the procedure is also called a 'demurrer for sufficiency,' and it tests the pleading by itself, alone and disconnected from extraneous matters. *Hahn*, at p. 747.

b.

Motion to Strike

The Court has broad authority to strike any portion of a pleading drawn not in conformity with the law and its orders. Code Civ. Proc., § 436. The trial court shall strike an allegation of punitive damages on motion unless the plaintiff has pleaded ultimate supporting facts. Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255 (Clauson).

III.

DISCUSSION

CDA demurs to each cause of action in the complaint: (1) breach of the warranty of habitability in violation of Civil Code section 1941.1; (2) breach of the warranty of habitability in violation of Health & Safety Code section 17920.3; (3) breach of the warranty of habitability in violation of Civil Code section 1942.4; (4) negligence - premises liability; (5) nuisance; (6) intentional infliction of emotional distress ("IIED"); (7) breach of contract; (8) breach of the covenant of quiet enjoyment; and (9) fraud/deceit/intentional misrepresentations of fact. CDA also moves to strike portions of the complaint on various grounds.

The demurrer is overruled as to the following causes of action: (1) breach of the warranty of habitability in violation of Civil Code section 1941.1; (2) breach of the warranty of habitability in violation of Health & Safety Code section 17920.3; (3) breach of the warranty of habitability in violation of Civil Code section 1942.4; (4) negligence - premises liability; (5) nuisance; (7) breach of contract; and (8) breach of the covenant of quiet enjoyment.

The demurrer is sustained, with leave to amend, as to the following causes of action: (6) IIED; and (9) fraud/deceit/intentional misrepresentations of fact.

The motion to strike is granted, with leave to amend, as to portions of the complaint related to seeking punitive damages.

The motion to strike is otherwise denied.

a.

Review of Allegations in the Complaint

Plaintiffs

plead that Plaintiffs were tenants at 5304 Colodny Dr., Unit 6 in Agoura Hills (the "Property"). Plaintiffs plead

Defendants acted in concert as owners, lessors, and/or managers of the property and that each Defendant was the agent, employee, partner, alter ego, and/or joint venturer of the others.

(Complaint, ¶¶ 2, 20-24, 27-28.)

Plaintiffs

plead the Property suffered from slum-type housing conditions, including a toxic mold infestation arising from massive water intrusions that Defendants failed to timely or properly remediate.

Plaintiffs plead Defendants had actual and constructive knowledge of the mold problem before Plaintiffs moved in, including notice from a prior tenant. Plaintiffs plead Defendants

concealed the mold problem to induce Plaintiffs to pay a security deposit and remain in the unit. Plaintiffs plead

Defendants engaged in fraudulent manipulation of utility equipment and charges, causing Plaintiffs to pay for utilities belonging to other tenants. (Complaint, ¶¶ 3-7, 51, 140.)

Plaintiffs

plead that between December of 2023 and December of 2024, they repeatedly notified Defendants of the Property's defects, including the mold infestation. Plaintiffs plead that

between February of 2024 and December of 2024 they advised Defendants of personal injuries and harm caused by mold exposure. Plaintiffs plead Defendants failed and refused to remedy the conditions, actively concealed the persistence of the mold problem, and merely promised to address the issues without ever doing so. Plaintiffs plead they ultimately

vacated the premises in December of 2024 due to Defendants' refusal to repair the hazardous conditions. (Complaint, ¶¶ 8-9, 36, 38-40.)

Plaintiffs

plead that as a direct and proximate result of mold exposure, they suffered cognitive injuries, respiratory infections, severe skin rashes, sleeplessness, anxiety, depression, and other physical and emotional injuries, as well as

damage to personal property such as furniture and clothing. Plaintiffs plead they were in good health with no known ailments prior to residing at the property, and that they did not become aware of the causal connection between their symptoms and the mold contamination until on or about April 10, 2024.

(Complaint, ¶¶ 12-14, 31-36.)

Plaintiffs

plead the Property's habitability defects violated numerous subdivisions of Civil Code section 1941.1, including failures to provide effective weatherproofing, functioning windows/doors, safe appliances, working plumbing, heating, gas, and electrical systems, sanitary conditions, adequate trash receptacles, safe floors/stairways, working fixtures, secure deadbolts, and functioning smoke and carbon monoxide detectors. Plaintiffs also plead violations of Health & Safety Code section 17920.3, including inadequate sanitation, insufficient light/ventilation, pest infestation, and visible mold growth, and allege that the property was subject to multiple inspections and citations by the County and City of Los Angeles for code violations. (Complaint, ¶¶ 44, 69, 89-92.)

Plaintiffs

plead that public housing officials inspected the Property and issued written notices to Defendants of their obligation to abate the substandard conditions. Plaintiffs plead Defendants failed to abate those conditions within 35 days of such notice, as required under Civil Code section 1942.4. Plaintiffs plead Defendants continued to demand and collect rent from Plaintiffs while the prohibited conditions remained unabated. (Complaint, ¶¶ 96-100.)

Plaintiffs

plead that beginning around February of 2024 through May of 2024, Hrach, acting as owner/manager of the property, made a series of intentional misrepresentations to Plaintiffs: denying the presence of mold despite later-admitted knowledge of it (March of 2024); repeatedly misrepresenting that necessary repairs would be made; falsely promising prompt remediation and mold testing with no intention of following through (April of 2024); and concealing that mold levels far exceeded safe thresholds (March through May of 2024). Plaintiffs plead these misrepresentations were made to induce them to continue residing in and paying rent for the unit, and to delay Plaintiffs' pursuit of their legal rights. (Complaint, ¶¶ 152-158.)

b.

Plaintiffs' allegations are

sufficient to support their claims for breach of the implied warranty of habitability claims against CDA.

CDA

demurs to the following causes of action in the complaint: (1) breach of the warranty of habitability in violation of Civil Code section 1941.1; (2) breach of the warranty of habitability in violation of Health & Safety Code section 17920.3; and (3) breach of the warranty of habitability in violation of Civil Code section 1942.4.

The elements for breach

of the warranty of habitability are: (1) a materially defective condition of the property affecting habitability; (2) the defective condition was unknown to the tenant at the time of occupancy; (3) the effect on habitability of the defective condition was not apparent on reasonable inspection; (4) notice was given to the landlord within a reasonable time after the tenant discovered, or should have discovered, the breach; and (5) damages. *Quevedo v. Braga*, (1977) 72 Cal.App.3d Supp. 1, 7-8, overruled on other grounds by *Knight v. Hallsthammar*, (1981) 29 Cal.3d 46, 55.

Civil

Code section 1941.1 sets forth conditions of untenable dwellings. Health & Safety Code section 17920.3 sets forth characteristics of substandard dwellings.

Civil Code section 1942.4 sets forth that a landlord may not collect rent for a substandard dwelling under certain circumstances.

Here,

Plaintiffs allege the Property suffered from slum-type housing conditions, including a toxic mold infestation arising from massive water intrusions that Defendants failed to timely or properly remediate. Plaintiffs allege Defendants had actual and constructive knowledge of the mold problem before Plaintiffs moved in, including notice from a prior tenant.

Plaintiffs allege the Property's habitability defects violated sections of the Civil Code and the Health & Safety Code. Plaintiffs allege public housing officials inspected the Property and issued written notices to Defendants of their obligation to abate the substandard conditions.

Plaintiffs allege Defendants failed to abate those conditions within 35 days of such notice, as required under Civil Code section 1942.4. Plaintiffs allege Defendants continued to demand and collect rent from Plaintiffs while the prohibited conditions remained unabated.

The

foregoing allegations are sufficient for Plaintiffs to state their claims for breach of the warranty of habitability in violation of Civil Code section 1941.1, Health & Safety Code section 17920.3, and Civil Code section 1942.4. Plaintiffs allege the Property was materially defective, that the defect was unknown to Plaintiffs when they entered the tenancy, that they gave notice to Defendants (including CDA), and that Plaintiffs were damaged by Defendants' failures to remediate the problem. For purposes of a demurrer, this is sufficient to allege breach of the warranty of habitability.

CDA

argues Plaintiffs' habitability claims fail because Plaintiffs have not alleged the existence of a lease. CDA is incorrect, as Plaintiffs clearly allege the existence of a lease. (See Complaint, ¶ 20: "Plaintiffs began their tenancy at the Subject Property under terms of a written lease agreement with Defendants"). The demurrer will not be sustained on this ground.

The

Court disagrees that Plaintiffs are "impermissibly attempting to impose strict liability on [CDA]." (Demurrer, p. 6:10.) Plaintiffs are not seeking to hold CDA liable for acts which CDA plainly had no part in. Rather, Plaintiffs are seeking to hold CDA liable for habitability defects that CDA was allegedly aware of and that CDA allegedly allowed to persist after Plaintiffs complained to CDA. This is sufficient.

The

demurrer is overruled as to the following causes of action in the complaint: (1) breach of the warranty of habitability in violation of Civil Code section 1941.1; (2) breach of the warranty of habitability in violation of Health & Safety Code section 17920.3; and (3) breach of the warranty of habitability in violation of Civil Code section 1942.4.

c.

Plaintiffs' allegations are sufficient to support their negligence - premises liability claim against CDA.

CDA

demurs to the Plaintiffs' fourth cause of action for negligence – premises liability.

Premises liability is a form of negligence wherein the “owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm.” *Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619. “The elements of a cause of action for premises liability are the same as those for negligence”: (1) the defendant's legal duty to use due care; (2) breach; (3) proximate and legal causation; and (4) damages. *Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1207.

Here, Plaintiffs allege CDA owed them a duty as their landlord to provide a tenantable unit.

Plaintiffs allege CDA breached that duty by negligently allowing the Property to become untenable.

Plaintiffs alleged this caused them damages. For purposes of ruling on a demurrer, Plaintiffs' allegations are sufficient to claim negligence against CDA. See *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795 (negligence may be pleaded generally).

The demurrer is overruled as to Plaintiffs' fourth cause of action for negligence – premises liability.

d. Plaintiffs' allegations are sufficient to support their nuisance claim against CDA.

CDA demurs to the Plaintiffs' fifth cause of action for nuisance.

The necessary elements for private nuisance are: (1) an interference with the plaintiff's use and enjoyment of his property; (2) the invasion of the plaintiff's use involves substantial actual damage; and (3) the interference is unreasonable as to its nature, duration, or amount. *San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 938.

Here, Plaintiffs allege CDA

allowed a severe mold problem to affect the Property. Plaintiffs allege CDA failed to abate the nuisance after Plaintiffs complained.

Plaintiffs allege the mold interfered with their use and enjoyment of the Property, and that said interference was unreasonable as to its nature, duration, and amount. For purposes of ruling on a demurrer, Plaintiffs' allegations are sufficient to claim nuisance against CDA.

The

demurrer is overruled as to Plaintiffs' fifth cause of action for nuisance.

e.

Plaintiffs' allegations are insufficient to support their IIED claim against CDA because Plaintiffs insufficiently allege the element of severe emotional distress.

CDA

demurs to the Plaintiffs' sixth cause of action for IIED.

The necessary elements

for IIED are: (1) outrageous conduct by the defendant; (2) which was intentional or reckless in nature; (3) severe emotional distress; and (4) causation.² *Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259. As to IIED, a plaintiff "must plead specific facts that establish severe emotional distress resulting from [a defendant's] conduct." *Michaelian v. State Comp. Ins. Fund* (1996) 50 Cal.App.4th 1093, 1114. A plaintiff may sufficiently allege severe emotional distress by including facts related to her resultant depression, anxiety, physical illness; specific allegations as to symptoms may be helpful.³ See, e.g., *Hailey v. California Physicians' Service* (2007) 158 Cal.App.4th 452, 476-477 (plaintiff sufficiently alleged severe emotional distress by claiming "emotional distress has resulted in vomiting, stomach cramps, and diarrhea"); compare with *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227 (trial court appropriately sustained demurrer to IIED claim where plaintiff "pleaded no facts demonstrating the nature, extent or duration of her alleged emotional distress").

Here,

Plaintiffs' IIED claim fails because Plaintiffs do not sufficiently allege the

element of severe emotional distress.

While Plaintiffs allege that they've "endured many sleepless nights and much emotional and mental distress, coupled with other physical conditions associated with severe mental and emotional distress" (Complaint, ¶ 132), Plaintiffs fail to specify how precisely any severe emotional distress manifested. Plaintiffs allege no specific diagnosis resulting from their exposure to mold.

The same is true of Plaintiffs' allegations related to a skin rash. While Plaintiffs allege they developed a rash, Plaintiffs fail to allege any concretizing details, such as the nature of any diagnoses, how long the rash lasted, how the rash was treated, etc. Going forward, Plaintiffs will need to include allegations of specific symptoms and treatments to allege the element of severe emotional distress.

Alternatively, the Court encourages Plaintiffs to forgo amending their pleading and proceeding with their remaining causes of action.

The demurrer is sustained, with leave to amend, as to Plaintiffs' sixth cause of action for IIED.

f.
Plaintiffs' allegations are sufficient to allege breach of contract against CDA.

CDA demurs to the Plaintiffs' seventh cause of action for breach of contract.

The necessary elements for breach of contract are: (1) a valid contract; (2) a plaintiff's full performance of its obligations under the contract; (3) a defendant's breach of the contract; and (4) resultant damages. *Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178.

Here, Plaintiffs allege they entered a contract with Defendant to lease a habitable unit. Plaintiffs allege, "The written lease agreements did not contain all terms of the lease, merely setting forth the parties, date, monthly payment amount, and certain other terms." (Complaint, ¶ 137.) Plaintiffs allege CDA breached the contract by failing to deliver a habitable unit.

Plaintiffs allege they were damaged by the breach. For purposes of ruling on a demurrer, this is sufficient.

The demurrer is overruled as to Plaintiffs' seventh cause of action for breach of contract.

g. Plaintiffs' allegations are sufficient to allege breach of the covenant of quiet enjoyment against CDA.

CDA demurs to Plaintiffs' eighth cause of action for breach of the covenant of quiet enjoyment.

The necessary elements for breach of the covenant of quiet enjoyment are: (1) a lease agreement between plaintiff and defendant; (2) the absence of language contrary to the implied covenant that tenant shall have quiet enjoyment and possession; (3) an act or omission of the landlord, or anyone claiming under the landlord, which substantially interferes with a tenant's right to use and enjoy the premises for purposes contemplated; and (4) an applicable remedy. *Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, 588-591.

Here, Plaintiffs allege Defendants (including CDA) breached the lease by delivering a unit that suffered from slum-type housing conditions, including a toxic mold infestation arising from massive water intrusions that Defendants failed to timely or properly remediate. Plaintiffs allege the Property's habitability defects interfered with Plaintiffs' quiet enjoyment thereof. For purposes of ruling on a demurrer, this is sufficient.

The demurrer is overruled as to Plaintiffs' eighth cause of action for breach of the covenant of quiet enjoyment.

h. Plaintiffs' allegations are insufficient to support their fraud claim against CDA because Plaintiffs fail

to meet their particularized pleading burden.

CDA

demurs to the Plaintiffs' ninth cause of action for fraud/deceit/intentional misrepresentations of fact.

The

necessary elements for fraud are: (1) misrepresentation; (2) knowledge of falsity; (3) intent to defraud; (4) justifiable reliance; and (5) resulting damage. *Conroy v. Regents of*

Univ. of Cal. (2009) 45 Cal.4th 1244, 1255. Additionally, any action sounding in fraud must be pleaded with particularity. *City of Pomona v. Superior Court* (2001)

89 Cal.App.4th 793, 803. This heightened pleading standard requires a plaintiff to plead facts in his complaint showing "how, when, where, to whom, and by what means the representations [amounting to fraud] were tendered." *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.

Here, Plaintiffs allege Defendants (and especially Hrach)

generally misrepresented to Plaintiffs that they were repairing the Property and would remediate the Property's mold problem. Plaintiffs allege they reported the Property's habitability issues, including the mold problem, to Defendants, and Defendants promised they would remediate the issue. Plaintiffs allege that despite these representations, Defendants failed to remedy the problems.

Plaintiffs' allegations are insufficient to state a

cause of action sounding in fraud because Plaintiffs have not alleged particularized false statements which CDA (or Hrach) knew to be false at the time they were made. While Plaintiffs allege Hrach generally misrepresented the absence of mold and then the seriousness with which Defendants were taking the mold problem, this is insufficient to show any particularized statement by Hrach or by CDA that was intended to induce Plaintiffs' reliance. Generally alleging that Defendants misrepresented or concealed the Property's habitability defects is insufficient. Without particularized facts showing some specific misrepresentation that Plaintiffs relied on when leasing the Property from Defendants, Plaintiffs cannot support a cause of action for fraud.

The demurrer is sustained, with

leave to amend, as to Plaintiffs' ninth cause of action for fraud/deceit/intentional misrepresentations of fact. Going forward, Plaintiffs will need to include specific allegations as to particularized misrepresentations intended to induce their reliance. Alternatively, the Court encourages Plaintiffs to forgo amending their pleading and proceeding with their remaining causes of action.

i.

Plaintiffs' allegations are insufficient to support a punitive claim.

CDA

moves to strike Plaintiffs' allegations related to seeking punitive damages.

The trial court shall strike an allegation of punitive damages on motion unless the plaintiff has pleaded ultimate supporting facts. *Clayton*, supra, 67 Cal.App.4th at p. 1255.

"In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." *Cal. Code Civ. Proc.*, § 3294 (a).

Here, the Court has already determined that Plaintiffs' allegations are insufficient to support a claim sounding in fraud. Plaintiffs' allegations are insufficient to support a punitive claim for essentially the same reason. Landlord-tenant disputes regarding mold and failures to remediate mold are relatively commonplace and do not, by themselves, present the type of outrageous conduct that might support a claim for punitive damages. While Defendants may have negligently failed to remediate the Property's mold problem, such a habitability defect does not, by itself, show oppressive or malicious conduct.

The

motion to strike is granted, with leave to amend, as to Plaintiffs' allegations related to seeking punitive damages.

j.

Plaintiffs' allegations are sufficient to claim attorneys' fees.

CDA moves to strike portions
of the complaint related to seeking attorneys' fees.

Here, Plaintiffs seek
attorneys' fees under Code of Civil Procedure section 1021.5. (Complaint, ¶ 83.) That section provides that attorneys' fees
may be awarded to a plaintiff in an action resulting in the enforcement of an
important right affecting the public interest.

"The purpose of an award of
attorney fees pursuant to section 1021.5, is to encourage suits that enforce
common interests of significant societal importance, but which do not involve
any individual's financial interest to the extent necessary to encourage
private litigation to enforce the right. To encourage such suits, attorneys
fees are awarded when a significant public benefit is conferred through
litigation pursued by one whose personal stake is insufficient to otherwise
encourage the action. Section 1021.5 was not designed as a method for rewarding
litigants motivated by their own pecuniary interests who only coincidentally
protect the public interest." Satrap
v. Pacific Gas & Electric Co. (1996) 42 Cal.App.4th 72, 77 (internal
quotations omitted).

The
Court agrees with CDA that Plaintiffs have not sufficiently alleged facts
showing their suit was brought to enforce common interests of significant
societal importance. Rather, Plaintiffs'
complaint, which alleges an ordinary landlord-tenant dispute, presents a
situation where Plaintiffs are seeking to recover for their own damages
resulting from mold exposure. Such a
conflict does not squarely present a dispute affecting the public interest. Thus, Code of Civil Procedure section 1021.5
does not provide grounds for properly seeking attorneys' fees.

Plaintiffs
also seek attorneys' fees under Civil Code section 1942.4. That section provides that a prevailing party
"shall be entitled to recovery of reasonable attorney's fees and costs of the
suit in an amount fixed by the court."
Civ. Code, § 1942.4 (b)(2). Here,
the court has already determined that Plaintiffs' allegations are sufficient to
state a claim for breach of the warranty of habitability in violation of
Civil Code section 1942.4. Thus,
Plaintiffs' allegations are sufficient to support a claim for attorneys' fees.

The

motion to strike is denied as to Plaintiffs' allegations related to seeking attorneys' fees.

k.

Plaintiffs'

allegations are sufficient to support claims for expert witness fees and statutory penalties.

CDA objects to Plaintiffs'

claim for expert witness fees because expert fees are not allowed as costs under Code of Civil Procedure section 1033.5 (b) unless expressly authorized by law. CDA is incorrect. Expert witness fees are addressed under Code of Civil Procedure section 1033.5 (a), not Code of Civil Procedure section 1033.5 (b). Code of Civil Procedure section 1033.5 (a) covers items that are expressly allowed as recoverable costs. Plaintiffs are allowed to claim expert witness fees. See Code Civ. Proc., § 1033.5 (a).

CDA

objects to Plaintiffs' claims for statutory penalties on grounds that Plaintiffs' claims under Civil Code section 1942.2 are time-barred. CDA reasons that because Plaintiffs allege they discovered the Property's defects in February of 2024, and Plaintiffs did not file this case until January 27, 2026, Plaintiffs statutory penalty claims are time-barred. CDA cites Code of Civil Procedure section 340 (a), which states that a 1-year limitations period applies to "[a]n action upon a statute for a penalty or forfeiture, if the action is given to an individual, or to an individual and the state, except if the statute imposing it prescribes a different limitation."

For purposes of a demurrer,

the Court rejects CDA's statute of limitations argument. Based on Plaintiffs' allegations, it is not immediately clear when the statutory penalties were incurred, i.e., when exactly Plaintiffs complained to CDA and when CDA failed to appropriately respond. The Court will allow Plaintiffs to continue with their requests for statutory penalties.

In sum, Plaintiffs'

allegations are sufficient to support claims for expert witness fees and statutory penalties. The motion to strike is denied as to Plaintiffs' claims for expert witness fees and statutory penalties.

IV.

CONCLUSION

Defendant CD Apartments, LLC.'s demurrer to the Complaint is OVERRULED as to the following causes of action:

.

(1) breach of the warranty of habitability in violation of Civil Code section 1941.1;

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(2) breach of the warranty of habitability in violation of Health & Safety Code section 17920.3;

.

(3) breach of the warranty of habitability in violation of Civil Code section 1942.4;

.

(4) negligence - premises liability;

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(5) nuisance;

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(7) breach of contract; and

.

(8) breach of the covenant of quiet enjoyment.

Defendant CD Apartments, LLC.'s demurrer to the Complaint is SUSTAINED, with leave to amend, as to the following causes of action:

.

(6)

intentional infliction of emotional distress; and

.

(9)

fraud/deceit/intentional misrepresentations of fact.

Defendant CD Apartments, LLC.'s motion to strike portions of the Complaint is GRANTED, with leave to amend, as to allegations related to seeking punitive damages.

Defendant CD Apartments, LLC.'s motion to strike portions of the Complaint is otherwise DENIED.

Plaintiffs are ORDERED to file their First Amended Complaint within ten (10) days.

See Cal. Rules of Court, Rule 3.1320(g).

Alternatively, the Court encourages Plaintiffs to forgo filing an amended pleading so that this case can be at issue. If additional facts are later discovered to support, e.g., a fraud claim, the Court will allow Plaintiffs leave to amend their pleading at such time.

Defendant CD Apartments, LLC. is ORDERED to give notice.

DATED: July 14, 2026

Lee

Arian

Judge of the
Superior Court